

**Justification Review Document
for Other than Full and Open Competition
FAR 6.302-1**

Requirement: Honey Badger (HB) Update, Repair, and Maintenance

Authority Cited: 10 United States Code 3204(a)(1) as implemented in Federal Acquisition Regulation (FAR) 6.302-1, Only one responsible source and no other supplies or services will satisfy agency requirements.

Period of Performance: [REDACTED]

Amount: [REDACTED]

Prepared by: Name: Janalyn Dement
 Title: Contract Specialist
 [REDACTED]

Contracting Officer: Name: Allison Hudson
 Title: Contracting Officer
 [REDACTED]

Technical: Name: Eric Smith
 Title: Research Geophysicist
 [REDACTED]

Requirements: Name: Jennifer Picucci
 Title: Senior Research Mathematician
 [REDACTED]



Center/ District Reviews

I have reviewed this justification and have found it adequate to support other than full and open competition.

[REDACTED]

Jennifer Picucci
Senior Research Mathematician

[REDACTED]

[REDACTED]

Kimberly L. Dulaney
Office of Small Business Programs

[REDACTED]

[REDACTED]

Arthur Smith
ERDC Office of Counsel

[REDACTED]

[REDACTED]

Allison Hudson
Contracting Officer

[REDACTED]

SCO-ALX and Headquarter Reviews

I have reviewed this justification and find it adequate to support other than full and open competition.

[REDACTED]

Elizabeth White
HQ USACE Small Business Programs

[REDACTED]

Rebecca M. Vandine
HQ USACE Technical

[REDACTED]

Deena Braunstein
SCO-ALX Office of Counsel

**Justification and Approval
for Other than Full and Open Competition
FAR 6.302-1**

1. **Contracting Activity:** The Engineer Research and Development Center Contracting Office (ECO) is located at the US Army Engineer Research and Development Center (ERDC), 3909 Halls Ferry Road, Vicksburg, MS 39180-6199.
2. **Description of Action:** The ERDC requests award of a new firm fixed price (FFP) contract with a period of performance of [REDACTED] on a sole source basis pursuant to Federal Acquisition Regulation (FAR) 6.302-1, Only one responsible source and no other supplies or services will satisfy agency requirements. This contract will be awarded to Elbitamerica, Inc. (Elbitamerica) (CAGE: 0WEC9), to procure the required services to update, repair, and maintain the existing Honey Badger (HB) system. Civil, Construction, General, Corps of Engineers funding (96 3122) will be used to award this contract.
3. **Description of Products:** The ERDC, Geotechnical and Structures Laboratory (GSL) has a need to procure services to update, repair, and maintain the existing HB system. The HB system is comprised of a series of interconnected sensors [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
4. **Authority Cited:** 10 U.S.C. 3204(a)(1) as implemented in the FAR 6.302-1, only one responsible source and no other supplies or services will satisfy agency requirements.
5. **Reason for Authority Cited:**
 - a) **Background:** [REDACTED]
[REDACTED]
[REDACTED] EFW Inc. is a subsidiary of Elbit Systems and, at the time of the last procurement, was the only authorized re-seller within the U.S. of the HB system. The HB system was developed under contract number W912HZ20C0027 for the US Army Corps of Engineers (USACE), ERDC, in accordance with the the Economy Act Determination and Findings (D&F) document between the US Customs and Border Protection Agency (CBP) and ERDC. As provided in the D&F, CBP requested that ERDC procure [REDACTED]
[REDACTED] the HB System, for the purpose of test and evaluation. [REDACTED]
[REDACTED] The HB system has not received any maintenance repairs or renovations since its installation in 2020. GSL requires the ability to maintain and repair this equipment for the remaining 16 month test and evaluation period [REDACTED].

Note: During the contract for the development of the HB system, EFW Inc. changed their name to Elbitamerica; however their Cage Code did not change and remains as 0WEC9.

- b) **Justification:** Elbitamerica (formerly EFW Inc.) is the only authorized re-seller of the Honey Badger Sensor System within the U.S.; as such, this system is only available for procurement through Elbitamerica Inc. Further, no other vendor has access to the proprietary source code required to make upgrade, repairs, or maintenance to the HB system and to perform the required testing of the upgrade. Therefore, any changes, repair, or maintenance to this system would require Elbitamerica Inc.'s services. [REDACTED]
[REDACTED]
[REDACTED]

- c) **Impacts:** [REDACTED]
[REDACTED]. If the ERDC is unable to update, repair, and maintain service components for the HB system utilizing the existing contractor, Elbitamerica Inc, this will result in delaying the Government's ability to further develop the existing system [REDACTED]
[REDACTED]

The USACE is unable to conduct a competitive solicitation as CBP is interested in maintaining the proven, existing HB detection system in part due to the economy inherent in maintaining an existing system instead of creating a separate new system. Without ownership to the rights to the software used to operate the HB system, the only remaining avenue for the use of competition would be to create and install a new, separate system [REDACTED]. However, the development of a completely new system would require major funding, excess time, and would not fulfill the agency requirement to utilize the existing HB system. This cost and time would be more than the original procurement of the HB system [REDACTED] (calculated from previous procurement, installation, and testing timeline and funds spent on HB by the US government) since any new system would have to be installed and complete System Acceptance Testing against the Functional Requirements Matrix as required by CBP. Therefore, failure to obtain the required update, repair, and service components for the existing HB system would be detrimental to both the Warfighter and the ERDC's missions.

6. **Efforts to Obtain Competition:** In accordance with FAR 5.201 and 5.207(c)(15), a notice of intent (NOI) to award this requirement on a sole source basis to Elbitamerica Inc. was posted to the Government-wide point of entry (GPE), SAM.gov on 11 June 2024 with a response date of 26 June 2024. All interested responsible sources were informed that they could submit a capability statement including their experience and past performance, a proposal, or a quotation demonstrating their ability to provide the requirement for consideration by the ERDC.4. No responses were received.

a) **Effective Competition:** There is no competition anticipated for this procurement as no responses to the NOI were received.

b) **Subcontracting Competition:** Elbitamerica Inc. is a large business concern. Therefore, in accordance with FAR 19.702(a)(1)(i), a subcontracting plan will be required.

7. **Actions to Increase Competition:** CBP, United States Border Patrol (USBP), Program Management Office Directorate is seeking the procurement and testing of these systems [REDACTED]

[REDACTED] Because this particular system is only available from Elbitamerica Inc., the use of competition for the procurement of the Honey Badger Sensor System is not possible. However, in the event that the ERDC is tasked with testing and evaluating other sensor systems, the use of competition for the testing and evaluation of other sensor systems might be possible. Therefore, in order to broaden industry participation and to promote the use of small business contracting pertaining to sensor systems, any future procurements for other sensor systems will be synopsized at the government-wide point of entry (GPE) website.

8. **Market Research:** Market research was conducted in accordance with FAR Part 10 by reviewing sources in industry (FPDS-NG, SAM.GOV, Google), reviewing previously awarded contracts (W912HZ20C0027), and obtaining input from GSL Subject Matter Experts. Elbitamerica Inc is the only company capable of servicing and repairing the HB system. Therefore, it has been determined that pursuing a contract directly with Elbitamerica Inc. is in the best interest of the Government.

9. **Interested Sources:** To date, no other sources have written to express an interest. In an attempt to acquire interested sources other than Elbitamerica Inc., information regarding this procurement was posted at the GPE, the SAM.GOV website on 11 June 2024. No responses were received from this notice.

10. Other Facts:

a) **Procurement History:** The HB system was developed by Elbitamerica Inc. under contract W912HZ20C0027 for the USACE, ERDC.

W912HZ20C0027 - awarded to Elbitamerica Inc. on a sole source basis in the amount of [REDACTED]. A Justification Review Document for Other than Full and Open Competition was submitted to the office of the Senior Contracting Official – Alexandria (ERDC Control Number 20-1958). The SCO approved the Justification on 10 July 2020.

11. Technical Certification:

I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

[REDACTED]

Eric Smith
Research Geophysicist

12. Requirements Certification:

I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

[REDACTED]

Jennifer Picucci
Senior Research Mathematician

13. Fair and Reasonable Price Determination:

I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable based on cost analysis, market research conducted, previously awarded similar contracts, and comparison of the proposed price with the Independent Government Estimate (IGE).

[REDACTED]

Allison B. Hudson
Contracting Officer

14. Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]

Allison B. Hudson
Contracting Officer

APPROVAL

Based on the foregoing justification, I hereby approve the procurement of the Honey Badger System Maintenance from Elbitamerica Inc. on an other than full and open competition basis pursuant to the authority of FAR 6.302-1(a)(2)(iii)(B), only one responsible source and no other supplies or services will satisfy agency requirements, in accordance with 10 U.S.C. 3204(a)(1) in the estimated amount of [REDACTED] subject to the availability of funds, and provided that the services and supplies herein described have otherwise been authorized for acquisition.

[REDACTED]

RACHAEL RAPOSA
Alternate Advocate for Competition –
Alexandria